

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 08/13/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C22-01352
CASE NAME: ETHAN LYNCH VS. JOHN MUIR HEALTH, A CORPORATION
MENTAL EXAMINATION OF PLTF
FILED BY: DIABLO MX RANCH, LLC., A CORPORATION
TENTATIVE RULING:

The Court understands that there is no dispute as to the substance of the requested medical examination by Defendant Diablo MX Ranch's proposed expert. The entirety of the dispute at this time appears to be the timing of the examination. Although Plaintiff did extend the timing by not promptly responding to the request and additionally by placing limitations that apparently took time to resolve, Defendant Diablo MX Ranch began the process of requesting this examination too closely to trial. The Court once again notes that this is not good cause to delay the trial and the request in the Reply brief to delay the trial is denied. Defendant's Motion appears otherwise substantively unopposed and is therefore **granted**.

2. 9:00 AM CASE NUMBER: C22-02101
CASE NAME: JOSHUA BAUGHMAN VS. RAMESH PITAMBER
PLAINTIFF'S COUNSEL FAILURE TO APPEAR ON APRIL 21, 2026.

FILED BY:

TENTATIVE RULING:

Given the ruling on the Motion for Terminating Sanction, the Court will not issue a separate sanction on failure to appear.

3. 8:31 AM CASE NUMBER: C25-01598
CASE NAME: ANIL MALIK VS. SETH WIENER

FILED BY:

TENTATIVE RULING:

No appearances necessary. Given the continued trial in MSC21-02370 currently set for April 13, 2027, further CMC set for May 4, 2027. Parties to file informative updated CMC statements in advance.

4. 9:00 AM CASE NUMBER: C25-01722
CASE NAME: ANDREW CIBULA VS. ZEN DAY SPA

FILED BY:

TENTATIVE RULING:

No appearances required. Further CMC set for February 10, 2027. Parties to file informative updated CMC statements in advance.

5. 9:00 AM CASE NUMBER: C25-01854
CASE NAME: RONESHA KEYS VS. SELINA CHEUNG

FILED BY:

TENTATIVE RULING:

No appearances required. Further CMC set for February 10, 2027. Parties to file informative updated CMC statements in advance.

6. 9:00 AM CASE NUMBER: C25-01863
CASE NAME: DARON OLIVER VS. SELINA CHEUNG

FILED BY:

TENTATIVE RULING:

No appearances required. Further CMC set for February 10, 2027. Parties to file informative updated

CMC statements in advance.

7. 9:00 AM CASE NUMBER: C25-01946

CASE NAME: SEAN PRATHER VS. ELVIA DEPALAC

WITH MENTOR

FILED BY:

TENTATIVE RULING:

Parties to coordinate with settlement mentor.

8. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

FILED BY:

TENTATIVE RULING:

Parties to appear.

9. 9:00 AM CASE NUMBER: C25-02850

CASE NAME: TITO TORRES VS. MARK SCOTT CONSTRUCTION, INC.

FILED BY:

TENTATIVE RULING:

If neither party challenges the tentative ruling, further CMC/Arbitration Status set for February 10, 2027.

Law & Motion

10. 9:00 AM CASE NUMBER: C22-02101

CASE NAME: JOSHUA BAUGHMAN VS. RAMESH PITAMBER

TERMINATING SANCTIONS

FILED BY: PITAMBER, RAMESH

TENTATIVE RULING:

Defendants Ramesh Pitamber and Opal Investment, LLC have filed a Motion for Terminating Sanction. The Motion is premised on pro se Plaintiff Joshua Baughman's refusal to participate in the discovery process. Baughman has refused to appear for a deposition that was ordered by the Court on more than one occasion. He has refused to pay monetary sanctions arising out of his refusal to appear for the deposition. The Motion is unopposed and Baughman has made no filings on this docket since his attorney withdrew over a year ago. Given this course of conduct, pursuant to Code of Civil Procedure section 2023.030(d), the Court **grants** the Motion. The matter is dismissed.

11. 9:00 AM CASE NUMBER: C23-01436
CASE NAME: PUZZLE CONSTRUCTION, INC. VS. ALEX VUONG
MANDATORY RELIEF FROM DISMISSAL
FILED BY: PUZZLE CONSTRUCTION, INC.
TENTATIVE RULING:

Before the Court is Plaintiff's Motion for Mandatory Relief from Dismissal Pursuant to CCP § 473.

Procedural Background

Plaintiff filed the Complaint on June 9, 2023. Defendants filed a Cross-Complaint on September 29, 2023.

The initial case management conference was held on October 9, 2023. Plaintiff and/or its counsel failed to appear so an order to show cause was issued. A second CMC was held on January 16, 2024, the same date of the OSC related to Plaintiff's counsel's failure to appear. Again, there was no appearance by Plaintiff and/or counsel. Accordingly, the Court ordered sanctions in the amount of \$100 and issued another OSC for failure to appear at the January 16 hearing. That hearing was set for July 15, 2024.

Again, there was no appearance by Plaintiff and/or counsel at the July 15, 2024, OSC and CMC. As such, the Court ordered that the Complaint be dismissed. It also issued an OSC as to why the answer to the cross-complaint should not be stricken for the repeated failures to appear. That hearing was scheduled for October 21, 2024. Again, Plaintiff and/or counsel for Plaintiff failed to appear.

In the interim, Plaintiff filed a motion for mandatory relief from dismissal on September 10, 2024. Plaintiff's counsel Huechi Wong filed a declaration in support indicating that the earlier dismissal was due to his failure to appear, that he was "solely responsible for handling" the matters, and that his "conduct was inexcusable." The Court granted the motion to set aside the dismissal on January 16, 2025.

Thereafter, Plaintiff's counsel again failed to appear at the March 24, 2025, CMC and OSC hearing. Accordingly, the Court issued sanctions in the amount of \$200 for each hearing date Plaintiff's counsel failed to appear at and issued another OCS for failing to appear that day. That hearing was scheduled for June 24, 2025. Plaintiff's counsel ***again*** failed to appear. Counsel was again sanctioned \$200 and the Court issued another OSC as to why the Complaint should not be dismissed. That hearing was set for September 5, 2025.

True to form, Plaintiff's counsel again failed to appear at the OSC hearing/CMC on September 5, 2025. Due to Plaintiff's counsel's repeated failures to appear and failure to even respond to the OSCs, the Court dismissed Plaintiff's complaint – for the second time.

On September 22, 2025, Defendants filed and served a Notice of Entry of Order confirming the dismissal of Plaintiff's Complaint. Plaintiff filed the instant motion to set aside on March 23, 2026.

Legal Standard

Plaintiff moves to set aside the dismissal of the Complaint pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively,

and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

The ‘mandatory’ provision, which Plaintiff relies upon, relates to times when an attorney admits fault in causing the default. This provision is set forth in the later portion of the statute:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.

“[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any ... resulting default [or default judgment] ... entered against his or her client....” (Code Civ. Proc. § 473, subd. (b).)

“Under the traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney’s neglect must show that the neglect was *excusable*.” (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487 (“*Metro*”).) An entirely different standard exists under the mandatory relief provisions in section 473. “These *require* the court to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*.” (*Ibid.*)

Analysis

Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439-440 “[T]he text of section 473 subdivision (b) does not require an explanation of reasons as a prerequisite to mandatory relief.”) Accordingly, 473(b) “at most demand[s] an attorney’s candid, full, and straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors.” (*Ibid.*) “In other words, the purpose of the mandatory relief provision under section 473, subdivision (b) is achieved by focusing on *who* is to blame, *not why*.” (*Id.* at 439 italics in original)

The declaration submitted by Plaintiff’s counsel is sufficient as a “candid, full, and straightforward acknowledgment of his or her error.” (*Id.* at 441.) Plaintiff’s counsel declares:

“I failed to attend multiple hearings and pay monetary sanctions, which ultimately resulted in the dismissal of plaintiff’s complaint. But for my mistakes, the dismissal would not have been entered. I was solely responsible for handling said matters. It was not my client’s responsibility. Thus, it was my fault for letting the dismissal occur.”

Under the mandatory provisions of section 473, the court is *required* to grant relief if the attorney admits neglect. (*Metropolitan Service Corp.*, *supra*, 31 Cal.App.4th at 1487.)

Defendants argue that section 473(b) “was never intended to serve as a ‘perfect escape hatch’ for ‘every case of poor judgment on the part of counsel [...] which results in dismissal,’” citing *English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 147. That portion of the opinion was discussing the case of *Huens v. Tatum* (1997) 52 Cal.App.4th 259, which was faced with determining whether the mandatory provisions of section 473(b) “apply to a voluntary dismissal entered pursuant to a settlement agreement.” (*English*, 94 Cal.App.4th at 141.)

The *Huens* court rejected “the plaintiff’s contention the mandatory provision of section 473(b) applied to voluntary dismissals, stating: ‘The purpose of the statute was to alleviate the hardship on parties who *lose their day in court* due solely to an inexcusable failure to act on the part of their attorneys. There is no evidence the amendment was intended to be a catch-all remedy for every case of poor judgment on the part of counsel which results in dismissal.’” (*Id.* at 142) Thus, *Huens* and *English’s* citation thereto pertain to a completely different set of facts – not present in this matter.

As noted above, the court is required to “grant relieve if the attorney admits neglect, even if the neglect was *inexcusable*.” (*Metro*, supra, 31 Cal.App.4th 1481, 1487 italics in original.) “The only exception to mandatory relief is when the trial court ‘finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.’” (*Ibid.*) The dismissal here was clearly caused by the attorney’s neglect. As such, relief is mandatory.

Fees and Costs

Curiously, Defendants request an award of fees and costs pursuant to Code of Civil Procedure section 2023.030(a). That section notes that the “court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” The issue here does not relate to misuse of the discovery process.

Code of Civil Procedure section 473, subdivision (b), however states:

The court ***shall***, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. (emphasis added.)

Defendants’ counsel, Richard Bowles, submits a declaration indicating that his office spent 22.5 hours reviewing the file and preparing the opposition. This included 21 hours spent by a “clerk” drafting the opposition, 1 hour of Mr. Bowles time related to the motion, along with an anticipated 30 minutes to attend the hearing.

The Court finds that these hours are extremely excessive. The Opposition consists of a 4-page memorandum that cites two cases (which are inapplicable), along with the wrong statute under which they are seeking fees and costs. Such an opposition should not have taken more than 3-4 hours for a junior level associate with oversight from a seasoned partner. The rate of \$425/hr. for Mr. Bowles is reasonable. The Court cannot determine if \$250/hr. for the ‘clerk’ is reasonable as there is no explanation as to the ‘clerks’ qualifications and experience. It would be a reasonable rate for a junior level associate, however.

The Court awards \$1,425 in attorney fees (4x\$250 + 1x\$425). The Court also awards \$60 in costs for

the filing fee. Thus, a total of \$1,485 shall be paid to Defendants. This amount is to be paid individually by counsel for Plaintiff – Huechi Wong.

Under section 473, subdivision (c), the Court may also direct “that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund,” among other relief. Given the pattern of neglect shown in this matter, the Court also directs Plaintiff’s counsel to pay the amount of \$1,000 to the State Bar Client Security Fund.

Conclusion

Plaintiff’s motion to set aside the dismissal is **granted**. Plaintiff’s counsel Huechi Wong is ordered to pay Defendants \$1,485. He is also ordered to pay \$1,000 to the State Bar Client Security Fund. These amounts shall be paid within 30 days of notice of entry of the order on this motion.

12. 9:00 AM CASE NUMBER: C25-01854

CASE NAME: RONESHA KEYS VS. SELINA CHEUNG

1ST AMENDED COMPLAINT

FILED BY: FEN GUAN, HUAN

TENTATIVE RULING:

This Motion was mooted by the filing of a Second Amended Complaint on July 15, 2026. Pursuant to stipulation, Defendant Guan was to withdraw the Demurrer. That did not occur, but the Court will not rule on the mooted Motion. Counsel are advised to remove mooted motions from calendar in the future.

13. 9:00 AM CASE NUMBER: C25-01854

CASE NAME: RONESHA KEYS VS. SELINA CHEUNG

STRIKE PLTFS 1ST AMENDED COMPLAINT

FILED BY: FEN GUAN, HUAN

TENTATIVE RULING:

This Motion was mooted by the filing of a Second Amended Complaint on July 15, 2026. Pursuant to stipulation, Defendant Guan was to withdraw the Demurrer (and, presumably, the Motion to Strike). That did not occur, but the Court will not rule on the mooted Motion. Counsel are advised to remove mooted motions from calendar in the future.

14. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

STRIKE THE FIRST AMENDED COMPLAINT

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a motion by defendant Jeffrey Rai to strike portions of the first amended complaint. For the reasons set forth, the motion to strike is **granted, without leave to amend**.

Background

Plaintiff filed the complaint commencing this action on July 7, 2025. In the operative first amended complaint ("FAC"), Plaintiff Kenneth Rai alleges claims against his son Jeffrey Rai for breach of contract (1st C/A), fraud based on misrepresentation (2nd C/A), and common counts for account stated and open book account (3rd and 4th C/As). (For clarity, the Court in some instances will identify the parties by their first names Kenneth and Jeffrey given their identical last names.) The Court will address the factual allegations of the FAC as relevant to the analysis of the demurrers to the specific causes of action in dispute.

Legal Standards Governing Motion to Strike Generally

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) Defendants' motion is made on the ground the allegations they seek to strike "request[] relief not supported by the allegations of the complaint." (Code Civ. Proc. § 431.10(b)(3).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading. (Code Civ. Proc. § 437.) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].)

It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (CCP § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Defendant moves to strike the portions of the FAC requesting "reasonable attorneys' fees" as set forth at the page and line numbers of the FAC specified in the motion. (FAC p. 7, ll. 10-11; p. 8, ll. 5-6; p. 8, l. 10; p. 8, l. 27; and p. 9, l. 7.) Plaintiff is asking for recovery of attorneys' fees on each of his four causes of action alleged in the FAC. Defendant argues that there is no contractual or statutory basis for recovery of attorneys' fees in this case, and none is alleged in the FAC.

California follows the "American Rule" with regard to the recovery of attorneys' fees, pursuant to which each party bears his own attorneys' fees unless there is a statute or contract which provides otherwise. (*Guinnane Construction Co., Inc. v. Chess* (2026) 119 Cal.App.5th 689, 698; Code Civ. Proc. §§ 1021, 1032(b), and 1033.5(a)(10) [attorneys' fees allowed as costs to prevailing party when authorized by contract, statute or law].) The doctrine of "tort of another" is an exception to the American Rule and is the basis on which Plaintiff relies for his right to claim attorneys' fees in this case. (*Gray v. Don Miller & Associates, Inc.* (1984) 35 Cal.3d 498, 504.)

The "tort of another" exception "allows a plaintiff attorney fees if he is required to employ counsel to prosecute or defend an action against a third party because of the tort of the defendant. [Citation omitted.]" (*Id.* at 504 [citing *Prentice v. North Amer. Title Guar. Corp.* (1963) 59 Cal.2d 618, 620-621].) The Court in *Guinnane Construction* explained. "The rule in its usual formulation allows recovery of attorney fees and other expenditures incurred where a third party tortfeasor's conduct requires it to bring or defend an action against a third person. [Citations omitted.] . . . [¶] "Attorney fees recoverable under the tort of another doctrine are not treated as fees *qua* fees but as consequential

tort damages. As our high court explained in *Prentice*, it was 'not dealing with 'the measure and mode of compensation of attorneys' but with damages wrongfully caused by defendant's improper actions.' [Citation omitted.]" (*Guinnane Construction Co., Inc., supra*, 119 Cal. App. 5th at 700-701.) (See also *Prentice v. North Am. Title Guaranty Corp.* (1963) 59 Cal.2d 618, 620 ["A person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (Emphasis added.)"].)

The Court in *Guinnane Construction* engaged in a lengthy review of decisions addressing the tort of another doctrine and affirmed the trial court's posttrial order denying *Guinnane Construction's* motion for attorneys' fees. Based on intentional interference with a contract between Guinnane and the Petersons by a real estate agent and his firm, Guinnane had to file a specific performance action against third parties (the Petersons), and having successfully litigated that action, Guinnane sued the real estate agent and his firm for "tort of another" for recovery of the attorneys' fees it incurred in the Peterson third party specific performance litigation, which the trial court granted. Guinnane then sued the real estate agent and his firm for recovery of the attorneys' fees in the "tort of another" litigation against the real estate agent and the real estate firm, and the trial court granted judgment for Guinnane for the attorneys' fees incurred in the third party specific performance litigation but denied Guinnane's posttrial motion for attorneys' fees incurred in the tort of another action. The Court of Appeal affirmed the denial of the posttrial attorneys' fees motion. In so holding, the Court noted the distinction drawn by the California Supreme Court in the *Gray* decision "between damages in the form of fees incurred to prosecute or defend an action against a third party and fees incurred to recover those damages." (*Guinnane Construction Co., Inc., supra*, 119 Cal.App.5th at 701-702.) The Court affirmed that the tort of another doctrine did not apply and does not allow recovery of attorneys' fees in litigation with the alleged tortfeasor. (*Id.* at 702-704 [citing two decisions located by the Court, "*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 80 [100 Cal.Rptr.3d 152] ['The tort of another doctrine does not allow a party to recover the fees and costs involved in litigating directly with a negligent defendant']; *David v. Hermann* (2005) 129 Cal.App.4th 672, 689 ['Prentice made clear that Code of Civil Procedure section 1021 "prohibits the allowance of attorney fees against a defendant in an ordinary two-party lawsuit" [citing *Prentice*.] The courts have refrained from expanding the [tort of another] rule in a way that would undermine the general rule that a party bears his own attorney fees'].")].)

The tort of another doctrine does not apply in this case and does not provide a basis for Plaintiff to claim attorneys' fees. First, the doctrine only allows recovery of attorneys' fees under the tort of another doctrine in a tort claim. Plaintiff cites no authority and makes no argument to support that he can recover attorneys' fees under that doctrine or any other basis on the breach of contract (1st C/A) or common count (3rd and 4th C/As) claims.

Second, Plaintiff has not alleged any facts showing that the predicate for application of the tort of another doctrine exists for purposes of his recovery of attorneys' fees on the second cause of action for fraud. Plaintiff has not alleged that he had to employ counsel to prosecute or defend any action involving a third party, which is the basis for application of the tort of another exception. None of the facts presented in the FAC suggest that Plaintiff could amend the FAC to allege additional facts that would allow recovery of attorneys' fees on any of the causes of action asserted, including the fraud

cause of action.

The motion to strike is **granted** as requested, **without leave to amend**.

15. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

1ST AMENDED COMPLAINT

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a demurrer by defendant Jeffrey Rai to the first amended complaint. For the reasons set forth, the Court rules as follows: (a) general and special demurrers to first and third causes of action – **overruled**; and (b) general demurrers to second and fourth causes of action – **sustained, with leave to amend**.

Background

Plaintiff filed the complaint commencing this action on July 7, 2025. In the operative first amended complaint ("FAC"), Plaintiff Kenneth Rai alleges claims against his son Jeffrey Rai for breach of contract (1st C/A), fraud based on misrepresentation (2nd C/A), and common counts for account stated and open book account (3rd and 4th C/As). (For clarity, the Court in some instances will identify the parties by their first names Kenneth and Jeffrey given their identical last names.) The Court will address the factual allegations of the FAC as relevant to the analysis of the demurrers to the specific causes of action is dispute.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.)

In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial notice. (*Evans, supra*, 38 Cal.4th at 6; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) Though the Court deems the allegations of the complaint to be true, where exhibits are attached to the complaint, the Court also accepts the statements in the exhibits as true and gives them precedence to the extent they contradict the allegations pled in the complaint. (*Moran v. Prime Healthcare Management, Inc.* (2016) 3 Cal.App.5th 1131, 1145-1146; *Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567-568 [stating "If the facts appearing in the attached exhibit contradict those expressly pleaded, those in the exhibit are given precedence same," but holding there was no contradiction in that case].)

To sustain a general demurrer based on the statute of limitations, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is time-barred, not that it might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32,

42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135; *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 [" '[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citations omitted.]"]).)

Moving and Opposing Requests for Judicial Notice

Defendant requests judicial notice of Plaintiff's original complaint, a grant deed recorded September 18, 2017 from Kenneth T. Rai and Yuki S. Rai, Trustees of the Kenneth T. Rai and Yuki S. Rai Revocable Trust to Jeffrey L. Rai., the Court's February 18, 2026 tentative ruling sustaining defendant's demurrer to the original complaint with leave to amend, and Plaintiff's FAC (Def. RJN Exhs. A-D.) Plaintiff also filed a request for judicial notice of the FAC in support of his opposition. (Pl. RJN Exh. A.) The Court **grants** the requests for judicial notice of the original complaint and the FAC, subject to the applicable limitations on judicial notice. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same].)

Judicial notice of the September 2017 grant deed (Def. RJN Exh. B) may be taken under Evidence Code section 452(c). The Court **grants** the request for judicial notice of the grant deed attached as Exhibit B to defendant's request. (*West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 780, 802-803 [on demurrer, judicial notice of recorded trustee's deed upon sale and entity named as grantee]; *Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184.) The Court notes defendant's argument that his parents had the assistance of counsel in recording the document based on the identification of what may be a law firm under the line "recording requested by" on the grant deed. (Def. RJN Exh. B.) The Court cannot take judicial notice of the fact defendant asserts, i.e., that his parents received the advice or assistance of counsel in making the Property transfer, from that reference in the recorded deed. The fact argued by defendant is beyond the scope of judicial notice, and a factual inference and interpretation of the document that is reasonably disputable. (*StorMedia, supra*, 20 Cal.4th 449, 457, fn. 9; *Linda Vista Village San Diego Homeowners Assn., supra*, 234 Cal.App.4th at 184.)

Plaintiff argues that extrinsic evidence cannot be considered in ruling on a demurrer, citing *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. That rule applies to evidence other than matters subject to judicial notice. (*Evans, supra*, 38 Cal.4th at 6 [affirming order sustaining demurrer to complaint based in part on documents subject to judicial notice, stating " '[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective.' [Citation.]' [Citations omitted.]"]); *Carloss, supra*, 242 Cal.App.4th at 123.)

Plaintiff also requests that the Court take judicial notice of its tentative ruling sustaining Defendant's demurrer to the original complaint with leave to amend. (Pl. RJN Exh. B [2/28/2026 Tent. Rul.].) The Court **grants** the request to take judicial notice of the February 2026 tentative ruling, subject to the applicable limitations on the scope of judicial notice of a court order. (*Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

Reply Request for Judicial Notice

In support of the reply, Jeffrey filed a request for judicial notice asking the Court to take judicial notice of seven documents. (Reply RJN Exhs. 1-7.) One of the documents, Reply RJN Exh. 7, is the same grant deed recorded on September 18, 2017 that is the subject of Jeffrey's RJN filed with the demurrer pleadings (Def. RJN Exh. B). The Court **denies** the request for judicial notice of Reply RJN Exh. 7 as duplicative of the request, which the Court has already granted above.

Defendant has also requested that the Court take judicial notice of two earlier grant deeds (Reply RJN Exhs. 1 and 2), and of four pleadings filed in a civil action in this Court, *Kenneth T. Rai and Yuki S. Rai, Trustees of the Kenneth T. Rai and Yuki S. Rai Revocable Trust v. Kathleen Rai, etc., et al.*, C15-01057 (Reply RJN Exhs. 3-6.) The general rule in law and motion proceedings is that the Court will not consider new evidence filed for the first time with a reply. (*Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 121; *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537, 1538.) Further, it is also not clear to the Court that the documents are relevant to the issues which the Court must consider in ruling on the demurrer. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [judicial notice denied where "the requests present no issue for which judicial notice of these items is necessary, helpful, or relevant"].) The Court cannot, by way of judicial notice, take judicial notice of the truth of statements made in a declaration (or verified pleading) in another action. (See *South Lake Tahoe Property Owners Group v. City of South Lake Tahoe* (2023) 92 Cal.App.5th 735, 752; *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.) The Court therefore **denies** the request for judicial notice of Reply RJN Exhs. 1-6 on these grounds.

Analysis

Defendant has made general demurrers to each of the four causes of action on the grounds that they are barred by the applicable statute of limitations and that the FAC fails to allege facts sufficient to state the causes of action. Defendant has also made special demurrers for uncertainty to each of the causes of action.

A. Breach of Contract (1st C/A)

The essential elements of a cause of action for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citations omitted.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) (See also *Richman v. Hartley* (2014) 224 Cal. App. 4th 1182, 1186.)

For any contract to be enforceable, it must be " 'sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached.' [Citation omitted.]" (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209.) The promise "must be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages. [Citations omitted.] 'Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.' [Citations omitted.] . . . 'If . . . a supposed "contract" does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.' [Citation omitted.]" (*Id.*

[emphasis added].)

The statute of limitation on enforcement of an obligation in writing is four years. (Code Civ. Proc. § 337(a).) Plaintiff relies on the continuous accrual doctrine to assert the breach of contract claim is timely within the statute of limitations. "Generally, a statute of limitations begins to run when a cause of action accrues, meaning when the cause of action is complete with all of its elements. [Citation omitted.] Violations of a continuing or recurring obligation may give rise to 'continuous accrual' of causes of action, meaning that ' "a cause of action accrues each time a wrongful act occurs, triggering a new limitations period." [Citation.]' [Citations omitted.]" (*Esparza v. Safeway* (2019) 36 Cal.App.5th 42, 59-60 [quoting *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1199].)

Aryeh involved a copier lease requiring monthly payments and is more analogous to this case and the 2004 Letter with its provision for monthly payments. The Court further explained in *Aryeh*, "[T]he theory of continuous accrual supports recovery only for damages arising from those breaches falling within the limitations period." (*Aryeh, supra*, 55 Cal.4th at 1199 [emphasis added].) The Court applied the continuous accrual doctrine to improper amounts the plaintiff claimed were included in the plaintiff's monthly payments due under a copier lease. Under that doctrine, "each alleged breach must be treated as triggering a new statute of limitations. [Citations omitted.] *Aryeh* cannot recover alleged excess charges preceding the four-year limitations period, but is not foreclosed from seeking recovery for charges to the extent they fall within that period. Because the complaint alleges excess charges within the four years preceding suit, it is not completely barred by the statute of limitations." (*Id.* at 1200-1201.)

1. Plaintiff's Allegations Supporting the Breach of Contract Claim in the FAC

Plaintiff alleges that in December 2004, he "transferred approximately \$400,000" of an inheritance Plaintiff received from Plaintiff's father to Plaintiff's son, defendant Jeffrey. (FAC ¶ 9.) He alleges that "on the same date" defendant made a written promise to Plaintiff reflected in a December 8, 2004 letter, a copy of which is attached to the FAC as Exhibit A (the "2004 Letter"). (FAC ¶ 9.) Plaintiff alleges that the 2004 Letter "memorialized" a promise by defendant to pay approximately \$1,000 per month to Plaintiff and approximately \$1,000 per month to defendant's mother, Yuki Rai, "to assist with living expenses in their retirement years." (FAC ¶ 9.) In paragraph 10, Plaintiff alleges that the payments, which were to be capped at \$11,000 per year to qualify for the yearly gift tax exemption, were to continue until June 2024, or "for an indefinite duration." (FAC ¶ 10.) Plaintiff alleges the continuous accrual doctrine applies, and that he is entitled to recover at least the amount of the payments due during the four years preceding the filing of this action under the *Aryeh* decision. (FAC ¶ 10.)

Plaintiff alleges he made demand on defendant to pay the amounts due under the 2004 Letter on or about July 17, 2024, and defendant failed to do so. (FAC ¶ 11.) He later alleges he made demand for payment of the amounts due under the 2004 Letter in November 2024, but defendant failed to make the payments. (FAC ¶ 17.)

2. Grounds for General Demurrer to the Breach of Contract Claim and Court's Analysis

Plaintiff's original complaint characterized the 2004 Letter as a promissory note reflecting a loan from Plaintiff to defendant. In the FAC, Plaintiff recharacterizes the 2004 Letter as a simply a contract

which defendant breached by not making the payments to Kenneth called for in the 2004 Letter. Defendant argues that the FAC fails to allege facts showing the existence of a contract, because Plaintiff does not allege that the \$400,000 inheritance received by Jeffrey was consideration in exchange for the promises in the 2004 Letter and because the terms of the 2004 Letter are too indefinite to be enforced as a contract.

a. Contract Sufficiently Definite to Be Enforced

In support of the demurrer, defendant cites the general elements required to state a cause of action for breach of contract and argues Plaintiff has not alleged the first element, i.e., the existence of an enforceable contract. Defendant does not cite any authorities in support of his argument demonstrating that the terms omitted from the 2004 Letter, namely, a specific start date or ending date for the payments, makes the contractual promise to make the monthly payments alleged in FAC paragraph 9 unenforceable. With respect to the ending date, Plaintiff in one place alleges an ending date of June 2024, and reading the 2004 Letter, the end date could reasonably be gleaned to be when Plaintiff no longer needs financial assistance in his retirement, based on the purposes of the promise of payment expressed in the 2004 Letter.

As to the lack of a commencement date, in his reply, defendant cites *Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232 to support his position that the 2004 Letter is too indefinite to be enforced. Notably, the written employment contract in that case was integrated, but the Court of Appeal nevertheless reversed the trial court's order sustaining a demurrer to a breach of contract action. In so holding, the Court noted that an integration clause does not preclude extrinsic evidence to explain ambiguous terms. In reversing the order sustaining the demurrer as to the breach of contract cause of action, the Court stated, " 'So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, we must accept as correct plaintiff's allegations as to the meaning of the agreement.' [Citation omitted.]" (*Id.* at 239 [also stating, "Where a complaint is based on a written contract which it sets out in full, a general demurrer to the complaint admits not only the contents of the instrument but also any pleaded meaning to which the instrument is reasonably susceptible. [Citation omitted.]"].)

The 2004 Letter has no integration clause, unlike the agreement in *Aragon-Haas*. In addition to the lack of an integration clause which would allow for extrinsic evidence to address omitted terms, the sufficiency of the terms of the 2004 Letter is subject to the guidance provided by the Civil Code for the interpretation and enforcement of contracts. (See, e.g., Civ. Code § 1643 ["A contract must receive such an interpretation as will make it lawful, operative, definite, reasonable, and capable of being carried into effect, if it can be done without violating the intention of the parties."]; Civ. Code § 1647 ["A contract may be explained by reference to the circumstances under which it was made, and the matter to which it relates."]; Civ. Code § 1657 ["If no time is specified for the performance of an act required to be performed, a reasonable time is allowed. If the act is in its nature capable of being done instantly—as, for example, if it consists in the payment of money only—it must be performed immediately upon the thing to be done being exactly ascertained."].) Defendant has not cited the Court any authority that the silence on the commencement date for payments would preclude enforcement of the 2004 Letter, particularly given this guidance on interpretation of contracts under

the Civil Code.

b. Consideration

As to the consideration for the promises in the 2004 Letter to form a contract, Plaintiff alleges that he transferred the funds to Jeffrey on the same date as the 2004 Letter defendant sent to Plaintiff. (FAC ¶ 9.) In the 2004 Letter, defendant Jeffrey's promise to make payments to Plaintiff to help him financially in his retirement references that the source of funds for Jeffrey making the financial assistance payments to Kenneth is primarily the \$400,000 in inherited funds from Plaintiff's father Chai-Nin Rai. (FAC Exh. A.) Reasonably and liberally construed for purposes of ruling on a demurrer, the Court can reasonably construe the allegations of paragraph 9 with the 2004 Letter as alleging defendant's promise to make the payments under the 2004 Letter was in consideration of the contemporaneous transfer of the \$400,000 in inheritance funds to Jeffrey. While under the liberal standards for ruling on a demurrer, the allegations are sufficient to support consideration, nothing in the ruling on the demurrer precludes Jeffrey from proving that was not the case.

c. Lack of Acceptance

Defendant argues that the FAC fails to allege that Plaintiff accepted the terms of the 2004 Letter. That argument is premised on the 2004 Letter being an offer by defendant Jeffrey that Plaintiff had to accept, but liberally and reasonably construed for purposes of a demurrer, the allegations of the FAC regarding Plaintiff's concurrent transfer of the \$400,000 in inheritance funds to Jeffrey with Plaintiff's receipt of Jeffrey's 2004 Letter can support a reasonable inference that Jeffrey accepted Kenneth's offer when Jeffrey delivered the 2004 Letter to Kenneth to the effect that based on Kenneth's transfer of the \$400,000 in inheritance funds to Jeffrey, Jeffrey would make retirement assistance payments to Kenneth using primarily those funds as the source of the payments.

d. Statute of Limitations

Defendant argues that the FAC alleges no payments were made under the 2004 Letter, that the breach occurred shortly after it was executed, and the breach of contract claim is therefore barred by the four-year statute of limitations for claims based on a written contract under Civil Code section 337, subd. (1). The 2004 Letter provides for monthly payments which Plaintiff alleges either were to terminate in June 2024 or were to continue indefinitely. In any event, the FAC and the 2004 Letter describe the existence of a recurring, monthly obligation under the 2004 Letter which supports application of the continuous accrual doctrine addressed above in the *Aryeh* decision.

Defendant did not address the *Aryeh* case or the continuous accrual doctrine in his memorandum in support of the demurrer, despite the fact the FAC expressly alleges the doctrine applies. (FAC ¶ 10.) Defendant's reply addresses *Aryeh* only by arguing that the continuous accrual doctrine can only apply to an obligation that is sufficiently definite to be enforced as a contract. The Court has concluded the FAC allegations and the 2004 Letter are sufficiently definite to allow potential enforcement of the contract for the reasons stated above. Under *Aryeh*, to the extent Plaintiff can prove monthly payments were due under the 2004 Letter and unpaid that were within the four-year statute of limitations, at least that portion of Plaintiff's breach of contract cause of action may not be time-barred.

The general and special demurrers to the first cause of action are **overruled**.

B. Fraud-Misrepresentation (2nd C/A)

The elements of a cause of action for deceit are " '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' [Citation omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Fraud must be pled with specificity, which requires a plaintiff to plead "facts which show how, when, where, to whom, and by what means the representations were tendered. [Citations and internal quotation marks omitted.]" (*Id.* at 645.) (*See also Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816 [addressing claim for promissory fraud based on fraudulent inducement, stating, in addition to summarizing the elements of fraud generally, " 'An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract.' [Citation omitted.] The action is one of deceit, which requires proof that the defendant made a misrepresentation of fact or a promise without any intention of performing it. (Civ. Code, § 1710.)"].)

The rule of liberal construction of pleadings does not apply to fraud claims. "[A] general pleading of the legal conclusion of fraud is insufficient. Every element of the cause of action must be alleged in full, factually and specifically. [Citation omitted.]" (*Tindell v. Murphy* (2018) 22 Cal. App. 5th 1239, 1249 [emphasis added].) (*See also Lazar, supra*, 12 Cal.4th at 645 ["In California, fraud must be pled specifically; general and conclusory allegations do not suffice."]; *Service by Medallion, Inc., supra*, 44 Cal.App.4th at 1816 [fraud claim must be pled with specificity].)

The statute of limitations for fraud is three years, which runs from the date of discovery of the "facts constituting the fraud." (Code Civ. Proc. § 338(d).) Plaintiff contends that under the delayed discovery rule, the fraud cause of action is timely since Plaintiff alleges he did not discover the fraud until November 1, 2024.

1. Plaintiff's Allegations Supporting the Fraud Cause of Action in the FAC

Plaintiff makes general introductory factual allegations that are incorporated into the second cause of action. (FAC ¶ 25 [incorporating paragraphs 1-24].) The FAC alleges there is a dispute concerning real property located on Southwind Circle in Richmond ("Southwind Property"). (FAC ¶ 7.) Plaintiff is 91 years old, lives with his daughter Kathleen, is hard of hearing and has limited English proficiency. (FAC ¶ 1.) Plaintiff alleges that Plaintiff's daughter Kathleen Rai purchased the Southwind Property in 1992. (FAC ¶ 8.) He alleges that defendant "urged" Kathleen to put Plaintiff on title to the Southwind Property with her, and he was added to title in 1997. (FAC ¶¶ 7, 8.) In 2016, Plaintiff became the 100% title holder of the Southwind Property after Jeffrey allegedly "convinced" Plaintiff to sue Kathleen to obtain full title in Plaintiff's name. (FAC ¶ 8.)

Plaintiff alleges that with Kathleen's help, on or about November 1, 2024, Plaintiff allegedly "discovered" that title to the Southwind Property had been transferred to defendant Jeffrey. (FAC ¶ 13.) He alleges that defendant had been collecting rent from the Southwind Property since August 2014, when defendant supposedly took Plaintiff to the County Recorder's office to sign over the Southwind Property to defendant. (FAC ¶ 13.) This allegation is in conflict with the allegations of paragraph 8 in which Plaintiff alleges he obtained title to the Southwind Property in 2016 after

defendant supposedly convinced Plaintiff to sue his daughter Kathleen to obtain sole title to the Southwind Property in his name. (FAC ¶ 8.) The timing also conflicts with the allegations of paragraph 14 of the FAC which suggests the Southwind Property was transferred to defendant Jeffrey in 2017, which is consistent with the copy of the grant deed of which Defendant has asked the Court to take judicial notice. (Def. RJN Exh. B.)

Plaintiff also alleges that in or about August 2021, Plaintiff transferred \$880,000 to defendant. (FAC ¶ 12.) He alleges the transfer was not a gift but was made "based on defendant's representation that the money would be used to care for plaintiff's daughter and granddaughters." (FAC ¶ 12.)

Plaintiff alleges that when he transferred the Southwind Property to defendant, defendant made certain representations to Plaintiff, specifically that (1) the transfer of the Southwind Property to defendant was "protective and temporary"; (2) defendant was holding title in his name to protect the Southwind Property from Kathleen Rai's husband Sean Feng; (3) title to the Southwind Property would be returned to Kathleen "upon request" if she was no longer with Feng, or if she or her daughters needed it for financial support or because of domestic violence. (FAC ¶ 14.) Plaintiff alleges the representations were made "repeatedly from 2017 through June 2024, by phone, email, and in-person visits between plaintiff and defendant" in the presence of Plaintiff and his wife Yuki. (FAC ¶ 14.) This set of allegations contradicts the allegation in paragraph 13 that Plaintiff "discovered" the transfer of title to the Southwind Property to defendant in November 2024, as Plaintiff alleges that he knew defendant had title to the Southwind Property as of at least 2017, based on defendant's alleged representations made to Plaintiff as to why defendant was holding title to that property. (*Compare* FAC ¶¶ 13 and 14.) Plaintiff alleges that in June 2024, defendant stated that if Kathleen is no longer with her husband, he will transfer the property back to her, and Plaintiff allegedly confirmed that was his wish. (FAC ¶ 14.)

Plaintiff alleges that in November 2024, he discovered that defendant's representations regarding the Southwind Property were not true and that defendant wanted the property for his own use. (FAC ¶ 15.) In November 2024, with Kathleen's help, Plaintiff made demand on defendant for the Southwind Property rental income and an accounting. (FAC ¶ 16.) In November 2024, Plaintiff made demand for the "return of the Property" and payment of amounts due under the 2004 Letter. (FAC ¶ 17.)

Plaintiff alleges defendant sent him a December 11, 2025 email, a portion of the content of which Plaintiff alleges in paragraph 18 and a copy of which is attached to the FAC as Exhibit B. The date of the email is approximately five months after Plaintiff commenced this lawsuit. Among other things, Plaintiff alleges that defendant stated in the email to Plaintiff that he acknowledged that he was holding the Southwind Property as a protective measure and that "If you request its return, or if Kathy is no longer with Sean and requires housing or stability for herself or her daughters, I will promptly execute all documents necessary to transfer the property back as you direct." (FAC Exh. B [emphasis added].)

In the fraud cause of action itself, Plaintiff asserts he discovered defendant "committed fraud" by representing he would "retain the [Southwind] Property in accordance with plaintiff's wishes, and for the benefit of plaintiff and plaintiff's daughter and granddaughter, and that that defendant would transfer the Property to plaintiff's daughter when the circumstances dictated." (FAC ¶ 26 [emphasis added].) He then alleges that the representations were false and that defendant "fraudulently

concealed that defendant intended that the Property would be used for his own benefit." (FAC ¶ 27.) Plaintiff alleges the statements "were known by defendant to be false when he made them." (FAC ¶ 28.) He alleges he relied on the statements and refrained from demanding the return of the property, and Plaintiff then demands any rental income from the Southwind Property and return of the Southwind Property to Plaintiff. (FAC ¶¶ 29, 30.)

2. Grounds for the General Demurrer to the Fraud Cause of Action and the Court's Analysis

Defendant contends that Plaintiff has not alleged the fraud claim with specificity, including how defendant has allegedly defrauded Plaintiff based on the factual allegations made in the FAC. Defendant further argues that Plaintiff has not alleged that the circumstances under which defendant allegedly represented the Southwind Property would be returned to Plaintiff or given to Kathleen or her daughters have occurred, such that the FAC does not allege facts to show that defendant's representations were false. The Court agrees.

Plaintiff has alleged that defendant's representations regarding the conditions for return or transfer of the Southwind Property to Plaintiff or Kathleen were that Kathleen was no longer with her husband Feng, that title to the Southwind Property no longer needed to be protected from Feng, and that Kathleen or her daughters needed the Southwind Property for financial support or because of domestic violence. (FAC ¶ 14.) The FAC is unclear as to whether the representation was that the Southwind Property would be transferred to Plaintiff, or to Kathleen. (FAC ¶¶ 14, 18 and Exh. B.)

a. Inadequate Allegations of Fraud Based on Fraudulent Inducement or False Promise for the 2017 Transfer of Title to Jeffrey

Plaintiff has not alleged facts showing that defendant's alleged representations were false or made with knowledge of their falsity and with intent to deceive when they were allegedly made at the time the title to the Southwind Property was transferred to Jeffrey in September 2017. Plaintiff has not alleged facts sufficient to support a claim for false promise or fraudulent inducement theory of fraud because Plaintiff alleges no facts that show the promise defendant allegedly made was false when he made it allegedly in 2017 when the title to the Southwind Property was transferred to him. To allege a claim for deceit based on a false promise, Plaintiff must allege additional facts and circumstances that support an inference of a promise made without intent to perform, instead of an agreement honestly made that was not performed. (*Tarmann v. State Farm Mutual Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 159 ["Simply put, making a promise with an honest but unreasonable intent to perform is wholly different from making one with no intent to perform and, therefore, does not constitute a false promise."].) (See also *Hills Transp. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 708 ["In so differentiating a false promise from the great bulk of broken promises, the allegations necessary to show contemporaneous intention not to perform should be clear, specific, and unequivocal. [Citations omitted.]".])

Plaintiff has not alleged any facts that would support that defendant's representations made in 2017 when title to the Southwind Property was transferred to him were false when made. Even if Plaintiff had alleged facts showing the representations are false, which he has not for the reasons stated above, the representations were made seven years before the alleged "falsity" was discovered based

on defendant's alleged failure to return the Property to Plaintiff. The facts alleged arguably might show a breach of a promise to return the Property to Plaintiff upon request, but such facts do not support a cause of action for fraud based on false promise. (*Tarmann, supra*, 2 Cal.App.4th at 159; *Hills Transp. Co., supra*, 266 Cal.App.2d at 708.)

b. Lack of Allegations Regarding Falsity of the Representations

The facts alleged in the FAC for the fraud cause of action are also conflicting and therefore fail to meet the specificity requirement for fraud to allege that the representations by Jeffrey are false. The representations described in the FAC address when and under what conditions the Southwind Property should be returned to Plaintiff, or perhaps to Kathleen. Plaintiff does not allege facts showing those circumstances or conditions have occurred; namely, that Kathleen is no longer with her husband Feng, that the Southwind Property no longer needs to be protected from Feng, or that Kathleen or her daughters need the Southwind Property for financial support or because of domestic violence. (FAC ¶ 14.) It is not clear how Plaintiff can claim defendant's representations were false in the absence of allegations that the events described in the representations have occurred, but despite the conditions described in the representations having arisen, defendant has not abided by his representations alleged in paragraph 14.

c. The December 11, 2025 Email

Plaintiff alleges and attaches a post-litigation December 2025 email purportedly from defendant in which he allegedly reaffirms his intent to abide by the representations alleged in paragraph 14 of the FAC if the circumstances stated in the representations occur. (FAC Exh. B.) The December 11, 2025 email could arguably be construed to create conflicts in the FAC allegations supporting the fraud claim. The email suggests that, despite the FAC's general allegations of Plaintiff's demand for the Southwind Property and defendant's refusal to transfer it, such a demand by Plaintiff or the conditions for return of the Southwind Property or turnover of that property to Kathleen have not occurred. (FAC Exh. B ["If you request its return, or if Kathy is no longer with Sean and requires housing or stability for herself or her daughters, I will promptly execute all documents necessary to transfer the property back as you direct." (Emphasis added.)].)

The Court recognizes that defendant vigorously disputes the genuineness and veracity of the December 11, 2025 email (MPA p. 7, fn. 5). The Court cannot determine the authenticity of the December 11, 2025 email or the veracity of the allegations of paragraph 18 of the FAC relying on that email on a demurrer. Defendant's reply cites Code of Civil Procedure sections 128.5 and 128.7 which provide remedies to a litigant if the procedural and substantive requirements of those statutes are met. There may be other remedies available to defendant, and the Court itself has duties with regard to the handling of fraudulent evidence proffered to the Court and attorney ethical obligations, none of which, however, are properly before the Court on the demurrer or subject to an evidentiary record sufficient to address any such issues at this hearing.

d. New Reply Arguments Regarding Standing and Absolute Deed

Defendant for the first time in his reply raises two new arguments. First, he contends that Plaintiff lacks standing to pursue the fraud claim because Plaintiff did not hold title to the Southwind Property individually but rather as Co-Trustee of his family trust when title to the Southwind Property was

transferred to Jeffrey in September 2017. (See Def. RJN Exh. B.) Second, he argues that the factual allegations in the fraud claim are contradicted and overridden by the absolute and unconditional terms of the September 2017 grant deed transferring title to the Southwind Property to defendant without any conditions or reservations.

The Court typically does not consider new theories raised for the first time on reply. Raising new arguments for the first time in a reply violates the general law and motion rules. (Cal. R. Ct. 3.1112(d)(3) [motion must state "the basis for the motion and the relief sought"].) "The rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for failure to present them before." (*Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604 [new points in reply brief on appeal].) Given the Court's determination that the allegations of the FAC are deficient in stating a cause of action for fraud for the reasons stated above, the Court will not address these new arguments.

e. Conclusion

The general demurrer to the second cause of action for fraud is **sustained, with leave to amend**. Having sustained the general demurrer to this cause of action for failure to state facts sufficient to constitute a fraud cause of action, the Court need not reach the other grounds asserted for the general and special demurrer to this cause of action or defendant's contention that the facts alleged in the fraud claim also fail to state a viable claim for breach of contract in light of the statute of frauds of Civil Code section 1624. Leave to amend is granted because the Court cannot determine at this point that Plaintiff cannot amend to allege additional facts to support the claim. Further, leave to amend this cause of action shall include leave to amend to address any new issues raised in the reply regarding deficiencies in the fraud claim if Plaintiff deems it necessary or appropriate.

C. Money Had and Received (3rd C/A)

Defendant argues that Plaintiff has not stated facts sufficient to support the common counts alleged in the FAC, referring to common counts for open book account and account stated. Plaintiff still alleges a cause of action for account stated, addressed below. Plaintiff alleged a cause of action for open book account in the original complaint, but in the FAC, Plaintiff has now alleged a cause of action for "money had and received." Defendant's arguments regarding open book account are irrelevant now and do not support the general demurrer to the money had and received claim.

"An action for money had and received lies wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter. [Citation omitted.]" (*Weiss v. Marcus* (1975) 51 Cal. App. 3d 590, 599.) "A common count is not a specific cause of action, however; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness, including that arising from an alleged duty to make restitution under an assumpsit theory. [Citations omitted.] When a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable. [Citations omitted.]" (*McBride v. Boughton* (2004) 123 Cal. App. 4th 379, 394.)

" 'A cause of action for money had and received is stated if it is alleged [that] the defendant "is indebted to the plaintiff in a certain sum 'for money had and received by the defendant for the use of

the plaintiff.' " ' [Citation omitted.] The claim is viable " 'wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter.' " ' [Citation omitted.] '[T]he plaintiff must prove that the defendant received money "intended to be used for the benefit of [the plaintiff]," that the money was not used for the plaintiff's benefit, and that the defendant has not given the money to the plaintiff.' [Citation omitted.]" (*Camden Systems, LLC v. 409 North Camden, LLC* (2024) 103 Cal. App. 5th 1068, 1082.)

1. Plaintiff's Allegations in Support of the Money Had and Received Claim in the FAC

Plaintiff alleges that within the last four years, defendant "became indebted to plaintiff for money had and received by defendant for the use and benefit of plaintiff, in the sum of at least \$44,000.00." (FAC ¶ 32.) Plaintiff alleges that the money had not been paid despite Plaintiff's demands, and Plaintiff alleges \$44,000 plus interest and attorneys' fees is now due and owing. (FAC ¶ 33.)

2. Court's Analysis

The FAC alleges sufficient facts to support that Plaintiff transferred \$400,000 in inheritance funds to defendant on December 8, 2004, with Plaintiff promising to make monthly payments of approximately \$1,000 per month for financial assistance for Plaintiff in his retirement, capped at \$11,000 per year, and subject to some adjustments based on monthly and annual taxes and Plaintiff's needs. (FAC ¶ 9 and Exh. A.) The allegations meet the elements of money had and received, and for purposes of a demurrer, the FAC alleges facts sufficient to state this cause of action. With a four year statute of limitations based on a writing under Code of Civil Procedure section 337 subd. (1), the claim for \$44,000 as alleged is consistent with the terms of the 2004 Letter providing for payments capped at \$11,000 per year for four years preceding the filing of the lawsuit. The allegations are sufficiently specific for a common count cause of action, as explained above in the Court's analysis regarding the sufficiency of the FAC to allege the breach of contract cause of action.

The general and special demurrers to the third cause of action are **overruled**.

D. Account Stated (4th C/A)

"The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations omitted.]" (*Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597, 600 [emphasis added].) (*See also Trafton v. Youngblood* (1968) 69 Cal.2d 17, 25 ["An account stated is an agreement, based on prior transactions between the parties, that all items of the account are true and that the balance struck is due and owing from one party to the other." (Emphasis added.)].) The California Supreme Court explained:

The theory upon which the action on an account stated is allowed is that transactions have occurred between the parties from which the relation of debtor and creditor has arisen, that thereafter one or both have rendered or made statements or declarations specifying definitely the amount due on account thereof and thereupon there has been an agreement, express or implied, by the one who is the debtor, to the other, that a certain sum is due from him on such

account, together with an express or implied promise to pay the same. The action is based on the promise to pay thus established, and if it is not expressly made, facts from which such promise will be implied must be proven.

(*Bennett v. Potter* (1919) 180 Cal. 736, 745 [emphasis added] [account stated cannot become a substitute for an action on a written contract with a promise to pay].)

1. Plaintiff's Allegations in Support of the Account Stated Cause of Action

Plaintiff alleges within the last year, "an account was stated by and between plaintiff and defendant wherein, and whereby it was agreed that said defendant was indebted to plaintiff in the sum of at least \$2,000,000.00 for the use and benefit of plaintiff's granddaughters." (FAC ¶ 35 [emphasis added].) He alleges no part of the \$2 million has been paid "despite plaintiff's demands" and that amount plus interest and attorney's fees is now due and owing." (FAC ¶ 36.)

2. Grounds for Demurrer and Court's Analysis

The allegations of the FAC do not meet the requisites for an account stated cause of action. There are no allegations that any statements were issued or made between the parties or that the parties have agreed to a "sum certain" being due by defendant on any "account" owed to Plaintiff in the amount of \$2 million for the benefit of Plaintiff's granddaughters. To the extent Plaintiff's claim in this cause of action is based on the allegations regarding defendant's purported December 11, 2025 email, that email and the allegations of FAC paragraph 18 are insufficient to allege an "account stated" claim under the standards of the authority cited above. There is no "sum certain" of \$2 million in the factual allegations of the FAC or Exhibit B to the FAC. Considering Exhibit B to the FAC relied on and incorporated by Plaintiff through paragraph 18, while recognizing defendant's position that the December 2025 email is not genuine, Exhibit B indicates that defendant is holding funds that are to be reserved for future expenditures for Plaintiff's granddaughters in an unspecified and not yet defined amount, not that there is any stated amount due now. (FAC Exh. B ["Upon Mikayla's 16th birthday, she would receive a car of her choice. [¶] \$800,000 of the resources entrusted to me are to be reserved to cover educational and related expenses for your granddaughters. [¶] I agreed to carry out these wishes on your behalf. I understand that this includes tuition, room and board, and other reasonable educational expenses for Mikayla and Mila, whether for college, preparatory schooling, or other appropriate educational programs."].) There are no allegations regarding the ages of the granddaughters or otherwise supporting any immediate right to the \$800,000 referenced in Exhibit B.

The general demurrer to the fourth cause of action for account stated is **sustained, with leave to amend.**

16. 9:00 AM CASE NUMBER: C25-02850
CASE NAME: TITO TORRES VS. MARK SCOTT CONSTRUCTION, INC.
MOTION TO COMPEL ARBITRATION
FILED BY: MARK SCOTT CONSTRUCTION, INC.
TENTATIVE RULING:

Defendant Mark Scott Construction, Inc.'s motion to compel arbitration is granted in part. The parties

are ordered to arbitrate the claims raised in this complaint before JAMS/Endispute in Walnut Creek. Defendant's request to dismiss this case is denied. This case is stayed pending outcome of the arbitration. The Court sets a status conference regarding the arbitration for May 12, 2027.

Plaintiff Tito Torres filed a complaint against Defendant because Defendant recorded a mechanic's lien for \$33,319.37 on Plaintiff's property. Plaintiff alleges that the mechanic's lien recorded on April 30, 2025, has expired. Defendant filed this motion to compel arbitration, arguing that the parties' contract includes an arbitration clause.

Standard

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. § 1, et seq. ("FAA") or by the California Arbitration Act, Code of Civil Procedure section 1280 et seq. ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; Code Civ. Proc. 1281, 1281.2, 1290.2.) Arbitration agreements may be invalidated on the same grounds other contracts may be invalidated, including fraud, duress or unconscionability. (*Armendariz v. Foundation Health Psych. Servs., Inc.* (2000) 24 Cal.4th 83, 98.

"[B]efore a court may order the parties to arbitration, the court must determine the threshold question of whether a valid agreement to arbitrate exists. [Citations.] The party seeking to compel arbitration bears the burden of establishing a valid agreement to arbitrate by a preponderance of the evidence, while the party opposing arbitration bears the burden of establishing any necessary facts in defense by a preponderance of the evidence. [Citations.]" (*Jones v. Solgen Construction, LLC* (2024) 99 Cal.App.5th 1178, 1195.)

Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) To invalidate the arbitration agreement on the grounds of unconscionability, which is what Plaintiff claims here, Plaintiff is required to show that the agreement is both procedurally and substantively unconscionable. (See *Armendariz*, supra, 24 Cal.4th at 114.) The more substantively unconscionable the arbitration agreement is, the less evidence of procedural unconscionability is required to render it unenforceable, and vice versa. (*Id.*)

Analysis

Plaintiff is suing over Defendant's mechanic's lien for \$33,319.79. (Comp. attachment.) Defendant's evidence shows that the parties entered into a contract which formed the basis of the mechanic's lien. The parties' contract provides for repairs to Plaintiff's property in Antioch. (Brincat dec. ex. A.) The contract includes a dispute resolution section, which states in part that "Any controversy or claim arising out of or related to this Agreement shall be settled by binding arbitration utilizing the service of JAMS/Endispute in Walnut Creek, California." (Brincat dec. ex. A section H.) Plaintiff does not dispute that he agreed to the contract.

Plaintiff argues that recorded mechanic's lien involved public records and should be outside of arbitration. The arbitration clause includes broad language and covers the dispute at issue here.

Plaintiff also argues that the lien has expired, however, that issue can be decided by the arbitrator

and is not a reason to deny this motion.

Plaintiff asks that Defendant be required to identify any foreclosure action, extension or release before arbitration is ordered. This information does not address whether or not there is a binding arbitration clause.

The Court finds that there is an arbitration agreement that covers the dispute raised in Plaintiff's complaint. Therefore, the Court must order the parties to arbitrate their claims, unless there is a defense to enforcement.

Plaintiff also argues that the Court should consider the fee-shifting provision included in the parties' contract and also consider the consumer standards and fees before ordering Plaintiff to arbitration. Plaintiff's argument does not explicitly mention unconscionability, however, he points to issues that require an unconscionability analysis.

It is apparent that the contract here was one of adhesion and provides at least some procedural unconscionability.

As to substantive unconscionability, the contract states in part that "The prevailing party in any arbitration or legal proceedings relating to this Agreement shall be entitled to payment of reasonable attorney's fees, costs and expenses inclusive of all of the expenses incurred with JAMS/Endispute." (Contract section H.)

In consumer arbitrations, "No neutral arbitrator or private arbitration company shall administer a consumer arbitration under any agreement or rule requiring that a consumer who is a party to the arbitration pay the fees and costs incurred by an opposing party if the consumer does not prevail in the arbitration, including, but not limited to, the fees and costs of the arbitrator, provider organization, attorney, or witnesses." (Code Civ. Proc., § 1284.3 (a).) Thus, if this is a consumer arbitration, the fee and cost shifting provision in the contract is inconsistent with section 1284.3.

Plaintiff appears to argue that this arbitration should be a consumer one. Defendant argues that the arbitrator should decide the issue and provides an example where JAMS determined a similar contract was not a consumer arbitration. (Reply dec.) Defendant has not shown that the arbitration clause contains a delegation clause. And in any event, the issue here is whether the arbitration clause includes an unconscionable provision, which is properly decided by the Court.

Neither side provided a thorough discussion on when a dispute constitutes a consumer arbitration. The Court has therefore conducted its own research on the issue.

The California Rules of Court include Ethics Standards for Neutral Arbitrators in Contractual Arbitration. Consumer arbitration is defined in section 2 of these standards:

(d) "Consumer arbitration" means an arbitration conducted under a predispute arbitration provision contained in a contract that meets the criteria listed in paragraphs (1) through (3) below. "Consumer arbitration" excludes arbitration proceedings conducted under or arising out of public or private sector labor-relations laws, regulations, charter provisions, ordinances, statutes, or agreements.

(1) The contract is with a consumer party, as defined in these standards;

(2) The contract was drafted by or on behalf of the nonconsumer party; and

(3) The consumer party was required to accept the arbitration provision in the contract.

(Ethics Standards for Neutral Arbitrators in Contractual Arbitration, section 2(d).)

A consumer party includes “[a]n individual who seeks or acquires, including by lease, any goods or services primarily for personal, family, or household purposes including, but not limited to, financial services, insurance, and other goods and services as defined in section 1761 of the Civil Code”. (Ethics Standards for Neutral Arbitrators in Contractual Arbitration, section 2(e)(1).) Civil Code section 1761 defines “Consumer” as “an individual who seeks or acquires, by purchase or lease, any goods or services for personal, family, or household purposes.” (Civ. Code § 1761(d).)

Here, the contract shows that Plaintiff hired Defendant to perform repairs on his property. In his opposition, Plaintiff states that the property is his home. Further, the address listed on Plaintiff’s opposition papers is the same as the address where the parties contracted for repair work. Finally, in the Work Authorization, it provides information about the Contractors’ State License Board, which is the state consumer protection agency.

In reply, Defendant provided documents from another case involving Defendant’s standard contract where JAMS determined it was not a consumer arbitration. That decision is not binding on this Court. Further, the trial court’s decision in this case did not address the fee shifting clause at issue here.

The Court finds that the contract is a consumer one because Plaintiff hired Defendant to provide services for household purposes. The Court finds that Plaintiff is a consumer under Civil Code section 1761 and the Ethics Standards for Neutral Arbitrators in Contractual Arbitration. Therefore, as a consumer in the arbitration context Code Civil Procedure section 1284.3 applies and the fee shifting clause is unconscionable.

The next issue is whether the Court should sever this one clause or refuse to enforce the entire arbitration agreement. “In deciding whether to sever terms rather than to preclude enforcement of the provision altogether, the overarching inquiry is whether the interests of justice would be furthered by severance; the strong preference is to sever unless the agreement is ‘permeated’ by unconscionability.” (Hasty v. American Automobile Assn. etc. (2023) 98 Cal.App.5th 1041, 1064 (internal quotation marks omitted).)

There is only one unconscionable clause here and the Court finds that the interests of justice would be furthered by severance of the fee shifting clause. The Court strikes the following from the parties’ contract: “The prevailing party in any arbitration or legal proceedings relating to this Agreement shall be entitled to payment of reasonable attorney’s fees, costs and expenses inclusive of all of the expenses incurred with JAMS/Endispute.”

Having stricken the fee shifting clause from the contract, the Court finds that the arbitration clause is enforceable and the Court orders the parties to arbitration.

Plaintiff’s request for judicial notice are denied as copies of the documents are not attached to the request. Further, some of the requests do not appear appropriate for judicial notice.

17. 9:00 AM CASE NUMBER: N25-1974
CASE NAME: CEDRIC MOORE VS. DAVID LIVINGSTON
PETITION FOR WRIT OF MANDATE AND COMPLAINT

FILED BY: LIVINGSTON, DAVID O.

TENTATIVE RULING:

Petitioner, Cedric B. Moore, filed this writ action against respondent, Sherriff of the County of Contra Costa, to compel respondent to process his application for a permit to carry a concealed weapon ("CCW permit") according to "the standards and requirements of Penal Code §§26150 and 26202." Respondent has filed both an opposition to the writ and a demurrer

The demurrer is **overruled** and the writ is **granted**. Petitioner shall submit a proposed order after providing it to the Sheriff for approval as to form.

I. Factual Background

Petitioner first submitted a paper application for a CCW permit in 2023, but the application was not processed that year. Instead, in 2024, after petitioner's submission, he was asked to re-submit the application electronically based on the new system used by the sheriff. The electronic application was entered online using California Department of Justice forms. Those forms cited the new 2024 statutory scheme that took effect under SB 2. (Declaration of Steven Valkanoff in Support of Demurrer, hereinafter "Valkanoff Decl.," Exhibit B.)

On his application, questions 5-6, petitioner provided minimal answers to questions relating to his criminal history, failing to strictly comply with the application's "important instructions" to complete the form "as directed." (Valkanoff Decl., p. 3.)

Question five asked, "Have you ever been detained or arrested in the Unites States or any other country? If yes, please explain including the date, agency, and whether the detention or arrest resulted in criminal charges, and if so, the disposition." While petitioner checked the "yes" box, he simply followed up by stating, "30 YEARS AGO." (Valkanoff Decl., p. 5.)

Question six asked, "Are you now, or have you been, on probation, parole, post release community supervision, or mandatory supervision from any state for conviction of any offense including traffic? If yes, please explain." Petitioner again checked the "yes" box, but again only explained by noting, "30 YEARS AGO." (Valkanoff Decl., p. 5.)

Question 20 asked: "Have you withheld any fact that might affect the decision to approve this license. If yes, please explain." Petitioner checked the "no" box. (Valkanoff Decl., p. 8.)

In November of 2024, respondent denied the application for "[F]ailure to provide full details on the following: An arrest for battery on peace officer/fire fighter (PC 240) as well as threatening public employee (PC 71). In 1982 convicted for PC 242 and sentenced to 10 days in jail and years probation. In 1986, arrested for CVC 10851. In 1993, arrested for PC 69, PC 148 and PC 422 which applicant later plead guilty to the PC 148 resulting in sentencing of jail and probation. Applicant has had multiple state tax liens."

On December 19, 2024, the Sheriff sent petitioner an email stating: "Your license to carry a concealed firearm pursuant to Penal Code sections 26150, 26155, or 26170 is denied based on a determination that you (the applicant) are a disqualified person for such a license, as set forth in Penal Code section 26202." (Valkanoff Decl., Ex. C.) On December 23, 2024, petitioner sent a letter to the Sheriff appealing the decision and asking the Sheriff to reconsider the denial, but the Sheriff did

not respond.

When counsel for petitioner became involved, the Sheriff initially took the position that the 2023 statutory scheme applied. (See Declaration of George M. Lee in Support of Writ, filed April 1, 2026, Ex. A.) Later, the Sheriff asserted that petitioner should reapply to the Brentwood Police Department. (*Id.*, ¶4, Ex. B.) The final position asserted by the Sheriff, advanced in the papers filed with the Court, is that the permit would need to be immediately revoked, if issued, based on incomplete answers provided by petitioner on his application. (*Id.*, ¶15, Ex. C.)

To date, no in-person interview has occurred, no character references have been contacted on petitioner's behalf, and other investigatory steps petitioner contends should have occurred have not occurred. (Declaration of Cedric B. Moore in Support of Writ, filed April 1, 2026, ¶14.) Petitioner states he was not given any opportunity to respond to or address the concerns cited in the denial, as he had expected. (*Ibid.*) Petitioner otherwise meets all eligibility requirements for a CCW permit. (*Id.* at ¶21.)

II. Procedural Background

On September 30, 2025 petitioner filed this action for writ of mandate in this Court. Petitioner alleges three causes of action: one for writ of mandate, one for declaratory relief, and one for injunctive relief. He seeks to compel the Sheriff to process his application according to "the standards and requirements of Penal Code §§26150 and 26202." A hearing on the merits was initially scheduled for July 9, 2026. Prior to that date, instead of filing an opposition to the writ, respondent filed a demurrer which was set for hearing in November. Both hearings were then re-set and are both now before the Court. Further briefing was permitted, but not required. The respondent provided an opposition memorandum to the writ, along with evidence, to which petitioner filed a "Second Reply Memorandum."

Because the arguments advanced in both the writ opposition papers and the demurrer moving papers are essentially the same, the Court discusses the arguments together herein.

III. Legal Background

The version of Penal Code section 26150, subdivision (a) that was in effect in 2023 provided that a sheriff "may issue" a CCW permit "upon proof of all of the following: [¶] (1) The applicant is of good moral character. [¶] (2) Good cause exists for issuance of the license. [¶] (3) The applicant is a resident of the county or a city within the county, or the applicant's principal place of employment or business is in the county or a city within the county and the applicant spends a substantial period of time in that place of employment or business. [¶] (4) The applicant has completed a course of training as described in Section 26165."

In 2022, however, the Supreme Court decided *New York State Rifle & Pistol Ass'n, Inc. v. Bruen* (2022) 597 U.S. 1 ("*Bruen*"), holding that a New York CCW licensing statute that required CCW license applicants to show a "proper cause" was unconstitutional under the Second Amendment.

The California Legislature, in response to *Bruen*, enacted California Senate Bill 2 ("SB 2"), to take effect in January of 2024, with the goals of establishing a more uniform and effective licensing process throughout California and addressing the implications of *Bruen*. (See *Cal. Rifle & Pistol Ass'n v. L.A. Cnty. Sheriff's Dep't* (C.D.Cal. 2024) 745 F. Supp. 3d 1037, 1045.) SB 2 replaced California's "good cause" requirement with a requirement that the licensing authority, before issuing a license or renewing a license, determine that the applicant is not a "disqualified" individual based on an

assessment of defined criteria. (*Ibid.*) SB 2 removes the "good moral character" and "good cause" requirements and replaces the "may issue" language with "shall issue."

The amended section 26150 subdivision (a), in effect in 2024, provided: "When a person applies for a new license or license renewal to carry a pistol, revolver, or other firearm capable of being concealed upon the person, the sheriff of a county *shall issue* or renew a license to that person *upon proof*" that the "*applicant is not a disqualified person* to receive such a license, as determined in accordance with the standards set forth in Section 26202," among other items not at issue here. (Emphasis added.)

In turn, a new statute, Section 26202, established standards for who is a "disqualified person" under its subdivision (a). An applicant was a disqualified person if he/she met certain criteria, which included being a danger to self, others, or the community, being subject to certain court actions within the previous five to ten years, or being incarcerated for certain offenses within the previous five to ten years, etc. (Pen. Code, § 26202, subd. (a).)

Subdivision (b) of that statute provides for certain procedures that a licensing authority must follow in determining whether an applicant is a disqualified person. Specifically, the licensing authority "shall conduct an investigation that meets all of the following minimum requirements: (1) An in-person interview with the applicant. [...]"

Additional "investigative efforts" are permitted, though they are not required. (Pen. Code, § 26202, subd. (c).)

SB 2 also required a licensing authority to revoke a licensee's CCW permit for failure to provide complete and accurate information in the CCW permit application. In 2024, Penal Code, § 26195 (b)(1) provided that a license "shall be revoked by the local licensing authority if at any time [...] the local licensing authority determines [...] (C) Any information provided by a licensee in connection with an application for a new license or a license renewal is inaccurate or incomplete."

Consistent with this, the Legislature further amended Penal Code section 26195 through AB 1078, effective in January 2026, explicitly prohibiting a licensing authority from issuing a CCW permit in the first place, as a result of an applicant's provision of incomplete or inaccurate information.

In relevant part, Penal Code, § 26195, subdivision (a) currently states:

A license under this chapter shall not be issued by the local licensing authority if any of the following occurs:

[...]

(2) The applicant knowingly provides any inaccurate or incomplete information in connection with an application for a license [...].

Subdivision (b) of that statute states, in relevant part:

(1) A license under this chapter shall be revoked by the local licensing authority if at any time the local licensing authority determines any of the following:

[...]

(B)The licensee knowingly provided any inaccurate or incomplete information in connection with an application for a license [...]

Accordingly, under the current version of 26195, and arguably under 26195 as it existed in 2024, an applicant that provides incomplete or inaccurate information would not be entitled to issuance of a CCW permit if the provision of “inaccurate or incomplete” information was done “knowingly.”

IV. Requests for Judicial Notice

In support of the petition, petitioner requests judicial notice of: (A) Former Cal. Penal Code § 26205, effective 1/1/24, pursuant to Sen. Bill 2, through 12/31/25; (B) Assembly Bill 1078, Stats. 2025, ch. 570 (eff. Jan. 1, 2026); and (C) California Department of Justice, Bureau of Firearms, Form BOF 4012 –Standard Initial and Renewal Application for License to Carry a Weapon Capable of Being Concealed. The unopposed request is **granted**.

Respondent requests judicial notice in support of his opposition, of the legislative analysis of AB 1078, which reflects the Legislature’s view that the amendment would simply “clarify” existing law, and that a licensing authority “shall not” issue a concealed carry license if inaccurate or incomplete information was provided in connection with an application. The unopposed request is **granted**. (Evid. Code, § 452 (c) [permitting notice of official acts of the legislative, executive, and judicial departments of any state of the United States.”].)

Notwithstanding the granting of these requests, the Court notes that the weight of the legislative history documents, including those presented by both sides here, is negligible. The Second District Court of Appeal has stated:

[J]udicial use of legislative history has come under formidable criticisms, including that “[l]egislative history has become contaminated by documents which are more aimed at influencing the judiciary after the bill is passed than explaining to the rest of the legislature what the bill is about before it is passed.” (*J. A. Jones Construction Co. v. Superior Court* (1994) 27 Cal.App.4th 1568, 1577; see Eskridge, *The New Textualism* (1990) 37 UCLA L.Rev. 621, 643–644 [describing recurring skepticism about “the reliability of traditional linchpins of statutory interpretation, such as committee reports and sponsor’s statements,” as “specific explanations in those sources may well be strategic, rather than sincere, expressions of the statute’s meaning”].) More fundamentally, critics have observed that “the idea that the diverse membership of a democratically elected legislature can ever have one collective ‘intent’ on anything is a myth; if there is ambiguity it is because the legislature either could not agree on clearer language or because it made the deliberate choice to be ambiguous—in effect, the only ‘intent’ is to pass the matter on to the courts.” (*J.A. Jones*, at p. 1577.)

(*Los Angeles Unified School Dist. v. Superior Court* (2021) 64 Cal.App.5th 549, 559, fn. 4.)

V. Standard of Review

A writ of mandate may be issued to a public agency “to compel the admission of a party to

the use and enjoyment of a right or office to which he is entitled" (Code Civ. Proc., § 1085.) Traditional mandamus lies to correct abuses of discretion, and will lie to force a particular action by the agency when the law clearly establishes the petitioner's right to such action. (*Sequoia Union High School Dist. v. Aurora Charter High School* (2003) 112 Cal.App.4th 185, 195, quoting *Miller Family Home, Inc. v. Department of Social Services* (1997) 57 Cal.App.4th 488, 491.)

Generally, mandamus may be used only to compel the performance of a duty that is purely ministerial in character. (*Ridgecrest Charter School v. Sierra Sands Unified School Dist.* (2005) 130 Cal.App.4th 986, 1002, citations omitted.) The remedy may not be invoked to control an exercise of discretion, i.e., to compel an official to exercise discretion in a particular way. (*Ibid.*) "A ministerial act has been described as 'an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his [or her] own judgment or opinion concerning such act's propriety or impropriety, when a given set of facts exists.' [Citation.] On the other hand, discretion is the power conferred on public functionaries to act officially according to the dictates of their own judgment." (*Id.* at 1002-1003, citations omitted.)

Courts exercise limited review in ordinary mandamus proceedings. (*Sequoia Union High School Dist., supra*, 112 Cal.App.4th at 195, quoting *Miller Family Home, Inc., supra*, 57 Cal.App.4th at 491.) They may not reweigh the evidence or substitute their judgment for that of the agency. (*Ibid.*) They uphold an agency action unless it is arbitrary, capricious, lacking in evidentiary support, or was made without due regard for the petitioner's rights. (*Ibid.*) However, courts must ensure that an agency has adequately considered all relevant factors, and has demonstrated a rational connection between those factors, the choice made, and the purposes of the enabling statute. (*Ibid.*)

VI. Discussion

A. Positions of the Parties

Petitioner, who represents he is a law-abiding resident, responsible firearm owner, business owner, and community leader, argues that the Sheriff erred because he failed to comply with a mandatory duty under SB 2 to process the application in accordance with the new statutory scheme. Petitioner emphasizes the mandatory language in Penal Code section 26150, which requires issuance of a permit to persons that are not "disqualified." Despite the Sheriff's initial communication about the denial in December 2024, it is undisputed that petitioner would not be disqualified under Penal Code, section 26202. (Opposition to Petition for Writ of Mandate, filed July 30, 2026, at 5:25-28.)

Respondent, despite initially denying the application on the basis that petitioner was disqualified under 26202, argues that he had the authority to reject the application based on Penal Code section 26195, which, according to respondent, allows (and in 2024 allowed) non-issuance of a permit where an applicant (seemingly including non-disqualified persons) provides incomplete or inaccurate information in connection with a CCW application. The Sheriff highlights the instructions which require answers to be provided "as directed." (See Valkanoff Decl., Ex. B, p. 3 ["Important Instructions"].) The Sheriff argues that he had "no duty to grant [petitioner] a CCW permit." (Opposition to Petition for Writ of Mandate, filed July 30, 2026, at 3:2.)

Petitioner argues that the Sheriff's determination he had "provided incomplete information" would undermine the holding of *Bruen*, which found subjective measures of eligibility unconstitutional.

B. Whether the Information is Inaccurate or Incomplete

The DOJ form that petitioner completed to initiate his application process includes questions that seek more information than that which can be considered as part of the “disqualified person” determination. Parties do not discuss this inquiry, however. Such an inquiry is beyond the scope of what this Court is asked to consider here.

Respondent argues the omitted information should be deemed “knowing” as a matter of law because petitioner’s omissions “cannot reasonably be attributed to a lapse in memory.” (Respondent’s Memorandum of Points and Authorities in Support of Demurrer, filed June 24, 2026, at 9:24-27.)

But the Court need not even decide the answers were “inaccurate or incomplete” as a matter of law. Assuming they were, and assuming the Sheriff could revoke the license or decline to issue one at all, petitioner was nonetheless entitled to an “in-person” interview, at which the Sheriff would presumably be able to determine whether the omission was “knowing” or not, as discussed below.

C. Section 26202 Requirements Were Ignored

The rules governing statutory construction are well settled. (See, e.g., *Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 487; *Ste. Marie v. Riverside County Regional Park & Open-Space Dist.* (2009) 46 Cal.4th 282, 288; *Burden v. Snowden* (1992) 2 Cal.4th 556, 562.) In construing a statute, our task is to ascertain the intent of the Legislature so as to effectuate the purpose of the enactment. (*Ibid.*) In determining intent, we look first to the language of the statute, giving effect to its plain meaning. (*Ibid.*) Although we may properly rely on extrinsic aids, we should first turn to the words of the statute, which are the most reliable indications of the Legislature’s intent. (*Ibid.*) We construe the words of a statute in context, and harmonize the various parts of an enactment by considering the provision at issue in the context of the statutory framework as a whole. (*Ibid.*)

Because 26150 requires the granting of a permit where the applicant is not “disqualified,” and in light of the later-passed AB 1078, which requires the Sheriff *not to issue* a permit in cases of an applicant “knowingly” providing incomplete information, the Sheriff argues that the plain language construction of 26150 would lead to “absurd results.” (Respondent’s Memorandum of Points and Authorities in Support of Demurrer, filed June 24, 2026, at 8:19-10:1.) This relies on the premise that the petitioner would be granted a permit, despite having failed to report certain information requested in the application. Even at the time in question (2024), the statutes required immediate revocation of a permit where the Sheriff learned of an applicant’s “knowing” provision of such information.

The problem with this argument is that it assumes the “knowingly” finding without the interview wherein an applicant must be allowed the opportunity to explain. Notable, nowhere in the statutory scheme is an applicant *required* to report the breadth of information requested in questions five and six of the application form. Whether these questions are nonetheless permitted to be on the form, this Court does not seek to decide.

The plain language of the section 26202 limits a disqualification determination to certain criminal history inquiries in the past five or ten years. This suggests the Legislature did not intend to make information that *was* disclosed (albeit incompletely) capable of disqualifying an applicant. Only under the sort of subjective “good cause” scheme that *Bruen* found unconstitutional would this sort of information be material, if the Sheriff decided to consider it so.

The plain language of Penal Code section 26202 does not allow the denial of an in-person

interview, which is required specifically as part of “determining whether an applicant is disqualified.” Such interview would provide the opportunity for applicants to explain the answers given. Accordingly, even in an application that has what might be considered flaws, the interview requirement and other procedural steps, are explicit and mandatory in making the determination:

In determining whether an applicant is a disqualified person and cannot receive [a CCW permit], the licensing authority *shall* conduct an investigation that meets all of the following minimum requirements:

(1) For a license issued pursuant to subdivision (b) of Section 26150 or subdivision (b) of Section 26155, an in-person interview of the applicant or a virtual interview of the applicant, where the applicant appears by video and audio, at the applicant’s election [...]

(2) In-person, virtual, or telephonic interviews with at least three character references

[...]

(Pen. Code, § 26202 (b), emphasis added.)

While subdivision (c) allows a licensing authority to engage in “investigative efforts in addition to those listed in subdivision (b),” the subdivision (b) efforts are the minimum, and not optional.

Here, the DOJ Application filled out by petitioner explicitly contains, on page three, the following text:

Prior to issuing a CCW license, the licensing authority is required to [...] conduct an investigation to determine whether the applicant is a disqualified person and cannot receive or renew a CCW license. *That investigation must, at a minimum, include a review of all information provided in this application, an in-person interview with the applicant, interviews with at least three character references, a review of publicly available information about the applicant, a review of information provided by the Department of Justice, and a review of information in the California Restraining and Protective Order System.*

(Valkanoff Decl., Ex. B, emphasis added.)

Petitioner indicates that, at the time of completing the application, he believed he would have the opportunity to elaborate on his answers during the in-person interview. Petitioner “well understood that he was dealing with a law enforcement agency, with full access to Mr. Moore’s criminal history. To suggest otherwise—believing that a Sheriff’s Office wouldn’t perform a full background check, criminal history, arrest and contact data, and the like—would be defying reality.” (Petitioner’s Reply, filed June 25, 2026, 6:18-21.)

The instructions on the DOJ form application further represent that such opportunity would be provided. The form instructions indicate that the interview is required, independent of the applicant’s answers. The section entitled “Important Instructions” requires the applicant to “[r]eview your answers before your in-person interview with the licensing authority investigator and *be prepared to clarify* the information provided upon request.” (Valkanoff Decl., Ex. B, p. 3, emphasis added.)

While the Sheriff contends that he would have had to deny or “immediately revoke” the CCW permit under Penal Code, § 26195 if a permit were issued, this is not apparent from the facts in this record. The revocation *would* be required if the petitioner had “knowingly” provided “inaccurate or incomplete information” in connection with his application. (Pen. Code, § 26195 (b)(1)(B).)

To the extent 26195 contains a mandatory requirement that the Sheriff deny the permit, this is reconcilable with the requirement that the Sheriff also comply with the § 26202 (b) procedural requirements for determining who is a “disqualified person.” These two statutes containing mandatory duties of the Sheriff can reasonably be reconciled if the Sheriff is required to consider whatever additional information would be elicited during the required interview in making the “knowingly” determination.

Petitioner does not seek mandate to compel the issuance of a permit, a result that might be characterized as “absurd” if the Sheriff immediately *had* to revoke it. (See Memorandum of Points and Authorities in Support of Demurrer, filed June 24, 2026, at 9:1-10.) Instead, petitioner seeks to have his application processed under the requirements mandated by statute.

While the Sheriff may have discretion to deny the application *after* the requirements in 26202 (b) are met, there is no statutory exception to undertaking these requirements. The Sheriff’s failure to follow these statutory procedures in making the disqualified person determination was arbitrary, capricious, and lacking in evidentiary support because the Sheriff did not adequately consider all relevant factors (such as the opportunity of an in-person interview wherein petitioner could explain his application responses further).

In making this determination, the Court is not reweighing evidence, just requiring the correct procedures to be followed.

D. No Alternative Remedy

The Sheriff argues petitioner has an alternative remedy, to apply for the CCW permit in Brentwood, where he currently resides. Petitioner argues the remedy is inadequate because his denial by respondent would adversely affect his ability to be granted a CCW permit by Brentwood. Sheriff fails to refute this argument. It is plausible that denial by one licensing authority could be used as a reason for denial by the other. The Court finds this is not an adequate remedy.

18. 9:00 AM CASE NUMBER: N26-0887

CASE NAME: PETITION OF:MARY MCNEILL

HEARING IN RE: PETITION FOR RELEASE OF LIEN

FILED BY:

TENTATIVE RULING:

Petitioners Mary McNeill and Jonathan Cotham seeks to cancel mechanic’s liens. The liens were recorded May 20, 2025 and June 2, 2025. Civil Code § 8460 requires action to enforce within 90 days. There has been no extension of credit or action to enforce, and more than 90 days have passed. Petitioner gave notice to the lienholder and received a response that the lienholder would respond, but also that the lien was being released. There appears to be no opposition. The Petition is Granted.

Law & Motion
Add On

19. 9:00 AM CASE NUMBER: N25-0895

CASE NAME:

DISQUALIFY DEFENSE FIRM

FILED BY:

TENTATIVE RULING:

Petitioner James Adcock has filed a Motion to Disqualify Defense Firm in this Petition arising out of an Underinsured Motorist arbitration. The Petition was filed relating to a “dispute . . . with respect to discovery” on May 2, 2025. Petitioner filed the motion to disqualify attorney Shirin Delkhah and the Law Firm of Tosci, Doyle, Houvener & Wellen on April 14, 2026. The Motion was originally set for hearing on July 23, 2026. Shortly before that date, Petitioner notified the Court that he had not served Respondent with the Motion—an ironic twist given the nature of this Motion—and the Court continued the hearing to August 13, 2026, to give Respondent a chance to oppose the Motion. The Court is now in receipt of an opposition and a reply.

This is, at core, a discovery dispute and Petitioner spills much ink on the underlying discovery dispute. The Court cannot, on the evidence before it today, and especially not on this Motion—which is about disqualification—resolve the underlying the discovery dispute about whether Petitioner’s rights have been violated. The *sole issue* before the Court on this Motion is whether counsel for State Farm has engaged in misconduct sufficient to warrant disqualification.

Although the record is confusing, it appears to the Court that counsel had a third party serve subpoenas. Counsel appears to have missed that Petitioner’s counsel had left his firm and started at a new firm, and did not properly update her third party. Subpoenas were therefore not properly served. It *appears* that the third party subsequently misprinted the proofs of service such that they are false—showing service at Mr. Lombardini’s new address long before he moved there. While it is possible that someone falsified these proofs of service purposely, it is equally possible that in reprinting them, a software program grabbed Mr. Lombardini’s new address and they became *inadvertently* falsified. What is evident to the Court in either situation is that there is no clear information that *counsel* engaged in this misdeed.

While the Court would certainly expect all subpoenas for personal information to follow all statutory provisions, and that counsel would engage in honest and direct communication, there is nothing before the Court conclusively showing that that did not occur.

The Motion is therefore **denied**.

